

HOUSE BILL 2164

By Russell

AN ACT to amend Tennessee Code Annotated, Title 7,
Chapter 82, Part 7 and Title 65, Chapter 4, Part 1,
relative to utilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 7-82-701(b)(4), is amended by
designating the existing language as subdivision (A) and adding the following as subdivision (B):

(B) A utility system owned and operated by a nonprofit association that:

(i) Was created in 1985;

(ii) Is responsible for the governance and maintenance of a community
that has at least five thousand (5,000) lots or units;

(iii) Provides direct funding for some emergency services for the safety
and protection of members of the association;

(iv) Provides water and wastewater services for the exclusive use of the
members of the association; and

(v) Whose governing board adopted a resolution requesting the
Tennessee board of utility regulation have jurisdiction over the association.

SECTION 2. This act takes effect upon becoming law, the public welfare requiring it.